Minutes of the Meeting of the Council of the Corporation of the Town of Ajax Held in the Council Chambers, Ajax Town Hall and Electronically on Monday, December 9, 2024

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		N. Henry
		L. Bower

1. Call to Order & Acknowledgement of Traditional Treaty Lands

Mayor Collier called the meeting to order at 2:35 p.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

Councillor Tyler Morin declared a pecuniary interest in relation to By-laws 81-2024 and 82-2024, as their daughter works for the business that is currently operating on the affected lands.

3. Adoption of the Minutes

Moved by: M. Crawford
Seconded by: S. Lee

That the minutes of the Regular Meeting of Council held on November 18, 2024 be adopted.

CARRIED

4. Question Period

Mayor Collier invited questions on agenda items from those present.

5. Delegations, Presentations, and Public Meetings

Motion to Suspend the Rules of Procedure

Moved by: M. Crawford
Seconded by: S. Lee

That the Rules of Procedure be suspended in order to hear an unscheduled delegation (item. 5.7).

CARRIED
on 2/3rds

5.1 Delegation: Community Input – Opening of Ashbury Boulevard/Range Road

Frances Gunn, Ajax Resident, expressed concerns related to the opening of Ashbury Boulevard/Range Road. Council Members asked questions related to the delegation. F. Gunn responded to questions from Council Members.

On behalf of Council, Mayor Collier thanked F. Gunn for their delegation.

5.2 Delegation: Reconsideration of Plans to Open the Roads

Kim Macpherson, Ajax Resident, expressed concerns related to the opening of Ashbury Boulevard/Range Road. Council Members asked questions related to the delegation. K. Macpherson responded to questions from Council Members.

On behalf of Council, Mayor Collier thanked K. Macpherson for their delegation.

5.3 **Delegation: Safety and Viability of Range Road/Ashbury Boulevard Opening**

Kristie Boyd, Ajax Resident, expressed concerns related to the safety and viability of the Range Road/Ashbury Boulevard opening. Council Members asked questions related to the delegation. K. Boyd responded to questions from Council Members.

On behalf of Council, Mayor Collier thanked K. Boyd for their delegation.

With the consent of Members present, item 5.5 was advanced in the order of business.

5.5 **Delegation: Temporary Opening of Ashbury Boulevard/Range Road**

Paul Barnes, Ajax Resident withdrew their delegation.

With the consent of Members present, item 5.7 was advanced in the order of business.

5.7 **Delegation: Shared E-Scooter / E-Bike Pilot Program**

Autumn Kerr, Ajax Resident, expressed concerns related to the use of E-scooters and E-bikes on the waterfront trail.

On behalf of Council, Mayor Collier thanked A. Kerr for their delegation.

5.4 **Delegation: Traffic and Safety on Ashbury Boulevard and Range Road**

Paul Martiniello, Ajax Resident, expressed concerns related to traffic and safety on Ashbury Boulevard and Range Road.

On behalf of Council, Mayor Collier thanked P. Martiniello for their delegation.

5.6 **Public Meeting: Official Plan Amendment Application OPA24-A5**
Zoning By-law Amendment Application Z8/24
425 Bayly Street West
Pursuant to Section 284.11.1 of the Municipal Act, 2001

Maylor Collier noted that the proposed by-laws namely Official Plan Amendment Application OPA24-A5 and Zoning By-law Amendment Application Z8/24 were brought forward under the authority of Section 284.11.1 of the *Municipal Act* and in accordance with Ontario Regulation 580/22, “Provincial Priorities”.

Mayor Collier declared the meeting to be a public meeting and invited comments and questions from the public.

Max Tarsky, Ledim Developments Ltd., expressed support for the proposed by-laws.

Frank Wong, owner, 275 Westney Road, expressed support for the proposed development and expressed concerns regarding adequate infrastructure to support the development. to future. Mayor Collier responded to concerns from the delegate.

There being no further questions or comments from the public, Mayor Collier closed the public meeting and invited comments from the applicant.

Kevin Bechard, Senior Associate, IPS Consulting Inc., spoke on behalf of Van Dusen Realty Holdings Corp., applicant/owner. K. Bechard delivered a presentation related to the proposed development applications. Council Members asked questions related to the presentation. K. Bechard and G. Romanowski, responded to questions from Council Members.

6. Correspondence

Members separated correspondence items 6.3, 6.5 and 6.6 for discussion.

Moved by: S. Lee
Seconded by: N. Henry

That the balance of the report (Items 6.1, 6.2, 6.4, 6.7 and 6.8) dated December 9, 2024 containing Items of Correspondence be received for information.

CARRIED

Item 6.3

Moved by: L. Bower
Seconded by: J. Dies

That Item 6.3 ("Township of Papineau-Cameron – Ontario Building Code") of the Correspondence Report be endorsed.

CARRIED

Items 6.5 and 6.6.

Moved by: S. Lee
Seconded by: M. Crawford

That Item 6.5 ("City of Hamilton – Opposing the Proposed Provincial Initiative that Seeks to Restrict or Limit the Autonomy of Municipalities in Implementing Road Safety Measures") and Item 6.6 ("City of Toronto – Respecting Local Democracy and Cities") of the Correspondence Report be endorsed.

CARRIED

7. Reports

7.1. Community Affairs & Planning Committee Report

7.1.1 Community Affairs & Planning Committee, December 2, 2024

Moved by: J. Dies
Seconded by: N. Henry

That the Community Affairs & Planning Committee Report dated December 2, 2024 be adopted.

CARRIED

7.2. General Government Committee Report

7.2.1 General Government Committee, December 9, 2024

Members separated item 4.4 of the General Government Committee Report dated December 9, 2024 for discussion.

Moved by: M. Crawford
Seconded by: N. Henry

That the balance of the General Government Committee Report dated December 9, 2024, be ratified, except item 4.4.

CARRIED

Item 4.4 PDS-2024-27: Traffic Update on Temporary Opening of the Ashbury Boulevard/Range Road Link

Council Members asked questions related to the contents of the report. G. Romanowski, Christie McLardie, Director of Public & Strategic Affairs, and Dave Meredith, Director of Operations & Environmental Services, responded to questions from Council Members.

Moved by: L. Bower
Seconded by: N. Henry

That the report titled "Traffic Update on Temporary Opening of the Ashbury Boulevard/Range Road Link" be received for information.

CARRIED

7.3 Summary of Advisory Committee Activities

None.

7.4 Departmental Reports

7.4.1 PDS-2024-30: Affordable Housing / Development Charges Exemption Agreement

Council Members asked questions related to the contents of the report. Julie Mepham, Manager of Budgets & Accounting, responded to questions from Council Members.

Moved by: R. Tyler Morin
Seconded by: L. Bower

1. That Council delegate authority to the Director of Planning & Development Services to approve and enter into Affordable Housing/Development Charges Exemption Agreements, substantially in the form as provided in Attachment 1 to this report, and;

2. That Council authorize the Director of Planning & Development Services and the Director of Finance to make administrative amendments to the template from time to time as required.

CARRIED

8. Regional Councillors' Report

Regional Councillor Members provided updates from the Region related to the upcoming Regional budget meeting.

Moved by: M. Crawford
Seconded by: J. Dies

That the Regional Councillors' Reports of December 9, 2024 be received for information.

CARRIED

9. Business Arising from Notice of Motion

None.

10. By-laws

Moved by: S. Lee
Seconded by: J. Dies

That By-law number 80-2024, By-law number 83-2024, and By-law numbers 85-2024 to 88-2024 be read a first, second and third time and passed.

CARRIED

By-law 81-2024

Councillor Tyler Morin abstained from voting due to his declared pecuniary interest.

Moved by: S. Lee
Seconded by: N. Henry

That By-law number 81-2024 be read a first, second and third time and passed.

CARRIED
on 1/3rd

By-law 82-2024

Councillor Tyler Morin abstained from voting due to his declared pecuniary interest.

Main Motion

Moved by: S. Lee
Seconded by: N. Henry

That By-law number 82-2024 be read a first, second and third time and passed.

Amendment

Moved by: S. Lee
Seconded by: N. Henry

1. That Section 4 of Draft By-law Number 82-2024 be amended to include the following Holding Provision:

   Prior to site plan approval, the applicant/owner shall provide a right-of way easement for shared driveway access to the benefit of the abutting property municipally addressed 325 Westney Road South.

CARRIED
on 1/3rd

Main Motion as Amended

Moved by: S. Lee
Seconded by: N. Henry

That By-law number 82-2024, as amended, be read a first, second and third time and passed.

CARRIED
on 1/3rd

By-law 84-2024

Main Motion

Moved by: R. Tyler Morin
Seconded by: L. Bower

That By-law number 84-2024 be read a first, second and third time and passed.

Amendment

Moved by: R. Tyler Morin
Seconded by: L. Bower

That the motion be amended by adding the following:

1. That Section 7.0 of the Community Benefits Charge By-law be amended to add an additional exemption as follows: ‘i) as residential or mixed-use on lands with an agreement approved under a Community Improvement Plan prior to this by-law coming into effect.

CARRIED

Main Motion as Amended

Moved by: R. Tyler Morin
Seconded by: L. Bower

That By-law number 84-2024, as amended, be read a first, second and third time and passed.

CARRIED

11. Notice of Motion

None.

12. New Business - Notices & Announcements

Council Members highlighted upcoming meetings of Council.

13. Confirming By-Law

Moved by: L. Bower
Seconded by: S. Lee

That By-law number 89-2024 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its regular meeting held on December 9, 2024, be read a first, second and third time and passed.

CARRIED

14. Adjournment

Moved by: M. Crawford
Seconded by: N. Henry

That the December 9, 2024 meeting of the Council of the Town of Ajax be adjourned (4:29 p.m.)

CARRIED

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Mayor and CEO

_____
Clerk